IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-203

CP (CAA) No. 91/230/232/PB/2021

IN THE MATTER OF:

Experience Projects Pvt. Ltd. & Anr. With Experience Investments & Finance Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 21.07.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

Order pronounced in open Court vide separate sheets. CP (CAA) No. – 91/230/232/PB/2021 (2nd Motion) is **allowed**.

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

Sd/-
(SHRI P.S.N PRASAD)
MEMBER (J)

THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT-V)

COMPANY PETITION NO. (CAA)-91 (PB)/2021
IN
COMPANY APPLICATION NO. CA(CAA)-54 (PB)/2018

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements & Amalgamations) Rules, 2016.

AND

In the matter of Scheme of Amalgamation by and between

EXPERIENCE PROJECTS PRIVATE LIMITED

...Applicant Company No. 1/Transferor Company No. 1

AND

ADEPT REALCON PRIVATE LIMITED

...Applicant Company No. 2/Transferor Company No. 2

AND

RIYA BUILDTECH PRIVATE LIMITED

...Applicant Company No. 3/Transferor Company No. 3

AND

MOGRA BUILDCON PRIVATE LIMITED

...Applicant Company No. 4/Transferor Company No. 4

AND

MOGRA ESTATES PRIVATE LIMITED

...Applicant Company No. 5/Transferor Company No. 5

AND

BOOM DEVELOPERS PRIVATE LIMITED

...Applicant Company No. 6/Transferor Company No. 6

AND

SHIKHAR REALCON PRIVATE LIMITED

...Applicant Company No. 7/Transferor Company No. 7

AND

SHASHVATA REALTECH PRIVATE LIMITED

...Applicant Company No. 8/Transferor Company No. 8

AND

DEVALAYA PROPBUILD PRIVATE LIMITED

...Applicant Company No. 9/Transferor Company No. 9

AND

LAVENDER INFRASTRUCTURE PRIVATE LIMITED

...Applicant Company No. 10/Transferor Company No. 10

AND

HONEY REALCON PRIVATE LIMITED

...Applicant Company No. 11/Transferor Company No. 11

AND

SHAKTI FURNISHINGS PRIVATE LIMITED

...Applicant Company No. 12/Transferor Company No. 12

AND

SPLENDOR INFRAPROJECTS PRIVATE LIMITED

...Applicant Company No. 13/Transferor Company No. 13

AND

IRIS INFRAVENTURES PRIVATE LIMITED

...Applicant Company No. 14/Transferor Company No. 14

AND

AD FIN CAPITAL SERVICES INDIA PRIVATE LIMITED

...Applicant Company No. 15/Transferor Company No. 15

AND

SUNNY CAST AND FORGE PRIVATE LIMITED

...Applicant Company No. 16/Transferor Company No. 16

AND

KARISHMA INDUSTRIES PRIVATE LIMITED

...Applicant Company No. 17/Transferor Company No. 17

AND

EURO ASIA MERCANTILE PRIVATE LIMITED

...Applicant Company No. 18/Transferor Company No. 18

WITH

EXPERIENCE INVESTMENT & FINANCE PRIVATE LIMITED (Formerly known as Experience Infra Projects Private Limited)

...Applicant Company No. 19/Transferee Company

Order Pronounced on: 21.07.2023

CORAM:

SH. P.S.N PRASAD, HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Abhishek Nahta, PCA, Mr Rishabh Sachdeva, Advocate, Mr. Ujjawal Mendiratta, Ms. Shruti Priya Sharma, Advs.

For the Respondent:

For the IT: Deptt: Mr. Puneet Rai, Mr. Nikhil Jain, Advs.

For the OL: Ms. Hemlata Rawat, Adv.

For the RD: Ms. Shankari Mishra, Adv.

ORDER

PER: SHRI P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)

1. This is a joint second motion Petition filed by **Petitioner Companies** under Section 230 to 232 of the Companies Act, 2013 ("**Companies Act**") read with Rule 15 of the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016 ("**CAA Rules**") for the purpose of the

approval of the proposed Scheme of Amalgamation (hereinafter referred to as "**Scheme**" for brevity), as contemplated between the Companies, Its shareholders and Creditors. The Copy of the scheme has been placed on record.

2. That details of the companies proposed to be amalgamated as placed on record are as under-

   i. **Experience Projects Private Limited** (hereinafter referred to as "Petitioner No.1/Transferor Company 1") was incorporated on 22.05.2008 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45200DL2008PTC178465 having its registered office at Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

   ii. **Adept Realcon Private Limited** (hereinafter referred to as "Petitioner No.2/Transferor Company 2") was incorporated on 07.08.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45400DL2009PTC192956 having its registered office at 201, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

   iii. **Riya Buildtech Private Limited** (hereinafter referred to as "Petitioner No.3/Transferor Company 3") was incorporated on 25.09.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45400DL2009PTC194679

having its registered office at 201, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005

iv. **Mogra Buildcon Private Limited** (hereinafter referred to as "Petitioner No.4/Transferor Company 4") was incorporated on 21.08.2008 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45400DL2008PTC299827 having its registered office at 201, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

v. **Mogra Estates Private Limited** (hereinafter referred to as "Petitioner No.5/Transferor Company 5") was incorporated on 01.07.2008 under the provisions of Companies Act, 2008 as a private limited company bearing CIN U70102DL2008PTC288364 having its registered office at 201, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

vi. **Boom Developers Private Limited** (hereinafter referred to as "Petitioner No.6/Transferor Company 6") was incorporated on 11.03.2010 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45200DL2010PTC293118 having its registered office at 201, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

vii. **Shikhar Realcon Private Limited** (hereinafter referred to as "Petitioner No.7/Transferor Company 7") was incorporated on 04.06.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45200DL2009PTC190925

having its registered office at 206, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

viii. **Shashvata Realtech Private Limited** (hereinafter referred to as "Petitioner No.8/Transferor Company 8") was incorporated on 28.12.2007 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45200DL2007PTC171950 having its registered office at 206, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

ix. **Devalaya Propbuild Private Limited** (hereinafter referred to as "Petitioner No.9/Transferor Company 9") was incorporated on 04.02.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U70102DL2009PTC187219 having its registered office at 206, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

x. **Lavender Infrastructure Private Limited** (hereinafter referred to as "Petitioner No.10/Transferor Company 10") was incorporated on 07.08.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45200DL2009PTC192970 having its registered office at 206, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

xi. **Honey Realcon Private Limited** (hereinafter referred to as "Petitioner No.11/Transferor Company 11") was incorporated on 07.08.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45400DL2009PTC192957

having its registered office at 2, Sardar Patel Marg Diplomatic Enclave New Delhi 110021.

xii. **Shakti Furnishings Private Limited** (hereinafter referred to as "Petitioner No.12/Transferor Company 12") was incorporated on 11.05.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U18202DL2009PTC190150 having its registered office at 201, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

xiii. **Splendor Infraprojects Private Limited** (hereinafter referred to as "Petitioner No.13/Transferor Company 13") was incorporated on 30.06.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45400DL2009PTC191748 having its registered office at 206, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

xiv. **IRIS Infraventures Private Limited** (hereinafter referred to as "Petitioner No.14/Transferor Company 14") was incorporated on 13.08.2009 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U45200DL2009PTC193162 having its registered office at 206, Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

xv. **Ad Fin Capital Services India Private Limited** (hereinafter referred to as "Petitioner No.15/Transferor Company 15") was incorporated on 13.06.1995 under the provisions of Companies Act, 2013 as a private limited company bearing CIN U74899DL1995PTC069705

having its registered office at 1014, Naurang Bhawan, K.G Marg, New Delhi-110001.

xvi. **Sunny Cast and Forge Private Limited** (hereinafter referred to as "Petitioner No.16/Transferor Company 16") was incorporated on 20.04.1992 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U27320DL1992PTC048389 having its registered office at 1014, Naurang Bhawan New Delhi-110001.

xvii. **Karishma Industries Private Limited** (hereinafter referred to as "Petitioner No.17/Transferor Company 17") was incorporated on 19.04.1995 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U74899DL1995PTC067491 having its registered office at 1014, Naurang Bhawan New Delhi-110001.

xviii. **Euro Asia Mercantile Private Limited** (hereinafter referred to as "Petitioner No.18/Transferor Company 18") was incorporated on 16.03.2007 under the provisions of Companies Act, 1956 as a private limited company bearing CIN U74999DL2007PTC160643 having its registered office at 1014, Naurang Bhawan New Delhi-110001.

xix. **Experience Investment & Finance Private limited (Formally known as Experience Infraprojects Private Limited)** (hereinafter referred to as "Petitioner No.19/Transferee Company") was incorporated on 23.05.2008 under the provisions of Companies Act,

1956 as a private limited company bearing CIN U45200DL2008PTC178523 having its registered office at Second Floor, 8/33, W.E.A, Karol Bagh, New Delhi 110005.

3. The Petitioner Companies submit that the Registered Office of the Petitioner Companies being in Delhi, are within the territorial jurisdiction of this Tribunal

4. That Petitioner Companies submit that the rationale for the present Scheme of Amalgamation between the Petitioner Companies are as follows:

> *"The Transferor Companies and the Transferee Company are group companies. The management wishes to amalgamate the Transferor Companies with the Transferee Company in order to have better administrative convenience and to reduce the operational costs arising out of maintenance of several companies. The amalgamation would also result in elimination of the overheads and other expenses associated with running eighteen companies and it will ensure optimum utilization of available services and resources."*

5. The proposed Appointed Date for the Scheme is 1st April 2017. This Tribunal prescribes 01.04.2022 as the appointed date for the proposed scheme of amalgamation.

6. The Petitioner Companies submit that the share exchange ratio as per Clause 10 of the Scheme of Amalgamation is as follows: -

a) 8274 equity shares of Rs. 10/- (Rupees Ten only) each in the Transferee Company shall be allotted as fully paid up (new equity shares) for every 1000 equity shares of Rs.10/-(Rupees ten only) each fully paid up held by shareholders in the capital of Transferor Company 1.

b) 1036 equity shares of Rs. 10/- (Rupees Ten only) each in the Transferee Company shall be allotted as fully paid up (new equity shares) for every 1000 equity shares of Rs.10/-(Rupees ten only) each fully paid up held by shareholders in the capital of Transferor Company 2.

c) 832 equity shares of Rs. 10/- (Rupees Ten only) each in the Transferee Company shall be allotted as fully paid up (new equity shares) for every 1000 equity shares of Rs.10/-(Rupees ten only) each fully paid up held by shareholders in the capital of Transferor Company 3.

d) 1133 equity shares of Rs. 10/- (Rupees Ten only) each in the Transferee Company shall be allotted as fully paid up (new equity shares) for every 1000 equity shares of Rs.10/-(Rupees ten only) each fully paid up held by shareholders in the capital of Transferor Company 11.

e) Due to cross shareholding, all the shares of the Applicant Transferor Company No. 4,5,6,7,8,9,10,12,13,14, 15, 16, 17 and 18 shall be cancelled, therefore the valuation of these Applicant Transferor Company has not been done.

7. From the record it is seen that, the first motion application bearing CA(CAA) 54/PB/2018 was filed by the Petitioner Companies seeking dispensing of the meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Transferor Company No.1,Transferor Company No.2, Transferor Company No.3, Transferor Company No.4, Transferor Company 5, Transferor Company No.6, Transferor Company No.7, Transferor Company No.8,Transferor Company No.9,Transferor Company No.10,Transferor Company No.11,Transferor Company No.12,Transferor Company No.13,Transferor Company No.14,Transferor Company No.15,Transferor Company No.16,Transferor Company No.17,Transferor Company No.18 and Transferee Company. The Tribunal vide order dated 09.05.2018 had dispensed with the requirement of convening and holding meetings of the Creditors and equity shareholders of the Petitioner Companies.

8. Subsequently , the Second Motion Petition along with the application for condonation of delay was moved by the Petitioner Companies in connection with the Scheme of Amalgamation for issuance of notices to Central Government through Regional Director (Northern Region), Registrar of Companies, NCT of Delhi & Haryana, Official Liquidator attached to Delhi High Court, and Income Tax Authorities and other sectoral regulators who shall be affected by the proposed Scheme, and to such Objector(s), if any and publication of the notice in respect of the said scheme. The said petition was admitted and directions were issued vide order dated 09.09.2021 of this tribunal, requiring the Petitioner

Companies to serve notice to the Central Government through Regional Director (Northern Region), Registrar of Companies, NCT of Delhi & Haryana, Official Liquidator attached to Delhi High Court, and Income Tax Department and other sectoral regulators likely to be affected by the said proposed Scheme and to carry out necessary publication in the newspaper namely, Business Standard (Hindi, Delhi edition) and Business Standard (English, Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.

9. It is seen from the records that the Petitioner Companies have filed affidavit dated 11.10.2021, affirming compliance of order dated 09.09.2021 passed by this Tribunal. A perusal of the affidavit discloses that the Petitioner companies have affected newspaper publication as directed in the Business Standard (English Edition) and Business Standard (Hindi Edition) in their issue dated 18.09.2021 respectively. The copy of original cutting of the newspaper was annexed. Further the Petitioner companies have affirmed that the copy of petition have been duly served upon the Registrar of Companies, Regional Director (Northern Region), Official Liquidator, Income Tax Department. It was further clarified that there are no other sectoral regulators likely to be affected by the said amalgamation.

10. It is submitted by the Petitioner Companies that the compliance with respect to accounting treatment has been made as certified by the Statutory Auditor's Certificate certifying that the proposed accounting

treatment including in the Scheme among the petitioner companies is in compliance with the applicable Accounting Standards specified under Section 133 of the Companies Act, 2013.

11. The Official Liquidator, Delhi vide its report dated 18.04.2021 and submitted before this Tribunal dated 19.04.2022 has made certain observations with regard to the proposed Scheme of Amalgamation among the Petitioner Companies. The Petitioner Companies had filed reply dated 17.08.2022 and affidavit dated 11.02.2023 in response to the observation made by the Official Liquidator, New Delhi, under wherein the Petitioner Companies gave clarifications and undertaking to address the observation made by the Official Liquidator, the details of which are summarised below:

Observation of OL Report vide report dated 18.04.2021	Reply on behalf of Petitioner Companies vide affidavit dated 11.02.2023
49 (a) While processing the instant petition and annexures thereto together with other relevant records, it has been observed the SFIO has conducted investigations into the affairs of certain Transferor Companies under the provisions of section 210 of the Companies Act, 2013 and consequently recommended winding up proceedings in the matter of certain companies. Similarly, as per para 12 of the petition as	1. That it is pertinent to note that the winding up petitions filed by the ROC have already been dismissed against Transferor Company No. 15, Transferor Company No. 16 and Transferor Company No. 18 vide order dated 18.12.2019 of Hon'ble NCLT New Delhi Bench- II, 18.12.2019 of Hon'ble NCLT New Delhi Bench- II and

on the date of this petition, the proceedings under the Companies Act, 2013 are pending against the following petitioner companies: - • AD FIN CAPITAL SERVICES INDIA PRIVATE LIMITED • SUNNY CAST AND FORGE PRIVATE LIMITED • KARISHMA INDUSTRIES PRIVATE LIMITED • EURO ASIA MERCANTILE PRIVATE LIMITED	27.02.2020 of Hon'ble New Delhi Bench- III respectively. However, the proceedings against the Transferor Company No. 17 are still pending before the Hon'ble National Company Law Tribunal ("the NCLT").
49 (b) It has been further mentioned in para 13 & 14 of the said petition inter alia that the winding up petition against Transferor Companies No. 15, 16,17 and 18 named above were filed by the Registrar of Companies, NCT of Delhi before the Hon'ble Tribunal. However, the Hon'ble Tribunal has dismissed the petition filed against Transferor Company No. 15, Transferor Company No. 16 and Transferor Company No. 18. The Registrar of Companies, Delhi has preferred an appeal in the Hon'ble National Company Law Appellate Tribunal and matters are pending.	2. The ROC has now preferred an appeal in the Hon'ble National Company Law Appellate Tribunal ("NCLAT"), New Delhi in respect of Transferor Company No. 15 bearing Company Appeal (AT) No. 105 of 2020 and Transferor Company No. 18 bearing Company Appeal (AT) No. 116 of 2020 and the matter is fixed for final date of hearing on 23rd September 2022. The ROC has also preferred an appeal in the Hon'ble National Company Law Appellate Tribunal, New Delhi in respect of Transferor Company NO. 16 bearing Company Appeal (AT) No. 203 of 2020 and matter is fixed for final date of hearing on 11th October 2022.
49 (c) Since the SFIO has investigated into the affairs of the said Transferor Companies	3. That it is pertinent to note that Ministry of Corporate Affairs vide order F. No. 04/181/2013-

and consequential winding up petitions are still pending in the Appellate Tribunal, the office of Official Liquidator has addressed a letter bearing No. OL/Tech/Amal/22/443 dated 23.02.2022 to the Serious Fraud Investigation Office (SFIO) with regard to the objection, if any of the said office in respect of the proposed scheme of amalgamation	
49 (d) That the SFIO vide its letter No. SFIO/Pros/0528/2020/Pros & Legal-Part (I) /I/24015/2022 dated 10.03.2022 received in this office dated 15.03.2022 has informed inter alia that the Ministry of Corporate Affairs in exercise of its power under section 235 of the Companies Act, 1956, had ordered an investigation into the affairs of the NKS Holding Private Limited (NKS) AND its 10 other related companies (CUI) and submitted report dated 31.03.2016. The investigation revealed that 49 companies controlled by Jain Brothers were used in providing accommodation entries to various entities. The said 49 companies were recommended for winding up and were stated as shell companies of Jain Brothers involved in providing accommodations entries to	CL II (NR) dated 28/10/2013 had ordered investigation into the affairs of the following 11 companies by Serious Fraud Investigation Organization (SFIO) in terms of the provisions of Section 235 of the erstwhile Companies Act, 1956: a) NKS Holding Private Limited b) Shri Niwas Leasing & Finance Ltd. c) SITAL Holdings Pvt. Ltd. d) Avail Financial Services Ltd. e) Carewell Exim Pvt. Ltd. f) Solomon Holdings Pvt. Ltd. g) Legend Infoways Pvt Ltd. h) Microland Developers Pvt Ltd. i) Utsav Securities Pvt. Ltd. j) Aquarius Fincap & Credits Pvt. Ltd. k) Shalini Holding Ltds. 4. That the name of Transferor Company No. 15, Transferor Company No. 16, Transferor Company No. 17 was and Transferor Company No. 18 was not there in aforementioned list of the 11 Companies, despite the fact, MCA recommended for filing of winding up petitions u/s 272 of the Companies Act,

various beneficiary companies. Accordingly, ROC, Delhi was directed by the Ministry to file winding up petition in respect of all the 49 companies controlled by Jain Brothers. ROC had filed winding up petition before the Hon'ble NCLT against all the 49 companies including the four following four companies which are subject matter amalgamation: - • AD FIN CAPITAL SERVICES INDIA PRIVATE LIMITED • SUNNY CAST AND FORGE PRIVATE LIMITED • KARISHMA INDUSTRIES PRIVATE LIMITED • EURO ASIA MERCANTILE PRIVATE LIMITED It is gathered from the referred letter that the winding up petition filed by Registrar of Companies, Delhi have been rejected against the above 4 companies by the Hon'ble NCLT. The Registrar of Companies, Delhi has preferred appeal before the Hon'ble NCLAT (Appellate Authority) against the rejection of winding up petition which are pending. However, the SFIO has objection to amalgamation of above said four companies, since they used by Jain	2013 against 49 companies which included Transferor Company No. 15, Transferor Company No. 16, Transferor Company No. 17 and Transferor Company No. 18. Further, the number of companies suddenly jumped to 49 without recording the material evidence against each one of them. 5. That with respect to this observation, reliance is being placed on NCLT judgement dated 18th January 2019 in the matter of "Registrar of Companies versus M/s Apoorva Leasing Finance & Investment Company Limited" having company petition number CP-179/271-272/ND/2018, which have identical facts as Transferor Company No. 15, Transferor Company No. 16, Transferor Company No. 17 and Transferor Company No. 18. The Hon'ble NCLT dismissed the winding up petition filed by the ROC with notional cost on the department of INR 25,000/- citing the following:

Brothers for providing accommodations entries to various beneficiaries. "*That the above submission of the SFIO prima facie indicate that the affairs of the said companies were being conducted in a manner which is prejudicial to the public interest and the respective companies. Hence, to this extent the proposed scheme of amalgamation does not deserve to be approved/sanctioned, however, the Hon'ble National Company Law Tribunal may like to pass such orders/orders as deemed fit and proper in the facts and circumstances of the case."*	*"even on merits we find that there is no cogent material against the respondent company placed before this Bench to persuade us that the prayer made by the ROC merits consideration"* *"we have no hesitation in concluding that the present petition is not only filed without issuance of proper sanction, but one made without giving a reasonable opportunity of being heard resulting in actions which seek of total lack of application of mind."* *"It is an exercise in facility, resulting in harassment, loss of time, effort and government money."* It is also pertinent to mention here that the Registrar of Companies filed an Appeal before Hon'ble National Company Law Appellate Tribunal ("NCLAT") bearing Company Appeal (AT) No. 88 of 2019 in the matter of Registrar of Companies versus M/s Apoorva Leasing Finance & Investment Company Limited against the order dated 18.01.2019 passes by the

	Hon'ble National Company Law and on 4th December 2019, the Hon'ble NCLAT dismissed the appeal citing the following: *"It is apparent that without giving reasonable opportunity of representation to the Respondent No. 1 the sanction has been granted that too without applying the minds thus we find no grounds to interfere in the order passed by the NCLT. The appeal is dismissed. No order as to cost."* That the Hon'ble National Company Law Appellate Tribunal, New Delhi Bench dismissed the Appeals against • AD Fin Capital Services India Private Limited (Transferor Company No. 15), • Sunny Cast and Forge Private Limited (Transferor Company No. 16) and • Euro Asia Mercantile Private Limited (Transferor Company No. 18) Vide order dated 25.02.2023 against the order dated 18.12.2019 and 27.02.2020 of this Hon'ble Adjudicating Authority.

	That the winding up petition filed by Registrar of Companies against Karishma Industries Private Limited (Transferor Company No. 17) before this Hon'ble Adjudicating Authority has been dismissed vide order dated 02.02.2023.

12. The Regional Director, Northern Region vide its report dated 12.04.2022 has made certain observations with regard to the proposed Scheme of Amalgamation among the Petitioner Companies. The Petitioner Companies had filed reply dated 11.05.2022 and affidavit dated 11.02.2023 in response to the observation made by the Regional Director, Northern Region under wherein the Petitioner Companies gave clarifications and undertaking to address the observation made by the Regional Director. The details of which are summarised below:

Observations of the Regional Director vide report dated 12.04.2022	Reply of the Petitioner Companies vide reply dated 11.05.2022 and affidavit dated 11.02.2023
1. While processing the present petition and annexures thereto together with the e-records of the captioned companies maintained in MCA-21 Registry, the following material facts have emerged: -	1. That it is pertinent to note that the winding up petitions filed by the ROC have already been dismissed against Transferor Company No. 15,

a) The instant petition pertains to the proposed Scheme of Amalgamation by virtue of which above-named 18 Transferor Companies are proposed to be amalgamated and vested with Experience Investment & Finance Private Limited (Transferee Company) as a going concern. b) The instant petition pertains to the proposed Scheme of Amalgamation by virtue of which above-named 18 Transferor Companies are proposed to be amalgamated and vested with Experience Investment & Finance Private Limited (Transferee Company) as a going concern. c) First Motion Application, in this regard, was filed before the Hon'ble National Company Law Tribunal at New Delhi vide Company Application CAA No. 54 (PB)/2018 on 12.03.2018. The Hon'ble Tribunal vide order pronounced on 09.05.2018 dispensed with the convening meetings in respect of meeting of equity shareholders, secured creditors and unsecured creditors of all the petitioner companies. d) The brief about the reasons and circumstances leading to the above said winding up petition filed by this office against Transferor Company No.15, Transferor Company No.16, Transferor	Transferor Company No. 16 and Transferor Company No. 18 vide order dated 18.12.2019 of Hon'ble NCLT New Delhi Bench-II, 18.12.2019 of Hon'ble NCLT New Delhi Bench-II and 27.02.2020 of Hon'ble New Delhi Bench- III respectively. However, the proceedings against the Transferor Company No. 17 are still pending before the Hon'ble National Company Law Tribunal ("NCLT"). 2. The ROC has now preferred an appeal in the Hon'ble National Company Law Appellate Tribunal("NCLAT"), New Delhi in respect of Transferor Company No. 15 bearing Company Appeal (AT) No. 116 of 2020 and the matter is fixd for final date of hearing on 19th July 2022. The ROC has also preferred an appeal in the Hon'ble National Company Law Appellate Tribunal, New Delhi in respect of Transferor Company No. 16 bearing Company Appeal (AT) No. 203 of 2020. 3. That it is pertinent to note that Ministry of Corporate Affairs vide order F. No. 04/181/2013-CL.II (NR) dated 28/10/2013 had ordered investigation into the affairs of the

Company No.17 and Transferor Company No.18 is as under: -

- A joint petition for Scheme of Amalgamation of NKS Holding Private Limited with Shri Niwas Leasing Finance Limited (Listed Company) was filed in the Hon'ble High Court of Delhi in 2011-12.
- A factual report was sent to the Directorate with the observation that the proposed amalgamation was not bona fide as there was prima facie rotation/circulation of funds of about Rs1000/- crores amongst following companies. Ultimately, an investigation into the affairs of 11 companies including NKS Holding Private Limited & Ors. was recommended by this office in 2012-13: -

➤ Sital Holdings Private Limited

➤ Avail Financial Services Limited

➤ Carewell Exim Private Limited

➤Solomon Holdings Private Limited

➤ Legend Infoways Private Limited

➤ Microland Developers Private Limited

➤ Utsav Securities Private Limited

➤Aquarius Fincap & Credits Private Limited

➤Shalini Holdings Limited

- The Ministry vide order F.No. 04/181/2013-CL. II(NR) dated following 11 companies by Serious Fraud Investigation Organization (SFIO) in terms of the provisions of Section 235 of the erstwhile Companies, 1956.

a) NKS Holding Private Limited
b) Shri Niwas Leasing & Finance Ltd.
c) SITAL Holdings Pvt. Ltd.
d) Avail Financial Services Ltd.
e) Carewell Exim Pvt. Ltd.
f) Solomon Holdings Pvt. Ltd.
g) Legend Infoways Pvt. Ltd.
h) Microland Developers Pvt. Ltd.
i) Utsav Securities Pvt. Ltd.
j) Aquarious Fincap & Credits Pvt. Ltd.
k) Shalini Holdings Ltd.

4. That the name of Transferor Company No. 15, Transferor Company No. 16, Transferor Company No. 17 and Transferor Company No. 18 was not there in the aforementioned list of the 11 Companies, despite the fact, MCA recommended for filing of winding up petitions' U/S 272 of the Companies Act, 2013 against 49 companies which included Transferor Company No. 15, Transferor Company No. 16, Transferor Company No. 17 and Transferor Company No. 18.

28.10.2013 had ordered investigation into the affairs of these 11 companies by Serious Fraud Investigation Organization (SFIO) under the provisions of section 235 of the erstwhile Companies Act, 1956. • The SFIO in their Investigation Report to the Ministry has recommended for filing winding up petitions under the provisions of section 272 of the Companies Act, 2013 against 49 group companies of NKS Holdings Limited including above-mentioned Transferor Company No.15, Transferor Company No.16, Transferor Company No.17 and Transferor Company No.18 since all these companies (19) were found involved in money laundering activities. e) The Hon'ble Tribunal later dismissed certain petitions including the petitions filed against Transferor Company No. 15, Transferor Company No. 16 and Transferor Company No. 18 primarily on the ground that the petition was filed without issuance of proper sanction and also on the merit of the case. f) This Office has preferred an appeal in the Hon'ble National Company Law Appellate Tribunal at New Delhi. The matter is respect of following companies is still pending before the Hon'ble Tribunal: -	Further, the number of companies suddenly jumped to 49 without recording the material evidence against each one of them. 5. That with respect to this observation, reliance is being placed on NCLT judgement dated 18th January 2019 in the matter of "Registrar of Companies versus M/s Apoorva Leasing Finance & Investment Company Limited" having company petition number CP- 179/271-272/ND/2018, which have identical facts as Transferor Company No. 15, Transferor Company No. 16, Transferor Company No. 17 and Transferor Company No. 18. The Hon'ble NCLT dismissed the winding up petition filed by the ROC with notional cost on the department of INR 25,000/- citing the following: *"even on merits we find that there is no cogent material against the respondent company placed before this Bench to persuade us that the prayer made by the ROC merits consideration"* *"we have no hesitation in concluding that the present*

✓ AD-Fin Capital Services India Private Limited (Transferor Company No. 15) ✓ Attractive Fin-Lease Private Limited ✓ Aquiss Private Limited ✓ Euro Asia Mercantile Private Limited (Transferor Company No. 18) ✓ Nandal Finance & Leasing Private Limited ✓ Jai Shree Financial Services Private Limited ✓ Touch Stone Holdings Private Limited ✓ Sri Amarnath Limited ✓ Sunny Cast & Forge Private Limited (Transferor Company No. 16) ✓ Sri Endransh Investment & Finance Private Limited g) Without prejudice to the above facts, it has also been observed from the petition together with the e-records maintained in MCA21 Registry, as under: - • The proposed scheme of amalgamation provides the appointed date as 01.04.2017. This is the date on which the Transferor Companies will be deemed to have merged with the Transferee Company. In this regard, the following aspect may kindly be examined in the Directorate: - • As to whether the sanction of the scheme with the proposed appointed date would have an impact on ongoing proceedings;	*petition is not only filed without issuance of proper sanction, but one made without giving a reasonable opportunity of being heard resulting in actions which seek of total lack of application of mind."* *"It is an exercise in facility, resulting in harassment, loss of time, effort and government money."* It is also pertinent to mention here that the Registrar of Companies filed an Appeal before Hon'ble National Company Law Appellate Tribunal ("NCLAT") bearing Company Appeal (AT) No. 88 of 2019 in the matter of Registrar of Companies versus M/s Apoorva Leasing Finance & Investment Company Limited against the order dated 18.01.2019 passes by the Hon'ble National Company Law and on 4th December 2019, the Hon'ble NCLAT dismissed the appeal citing the following: *"It is apparent that without giving reasonable opportunity of representation to the Respondent No. 1 the sanction has been granted*

& • The petitioner companies have already filed their balance sheets up to 2019-20, hence as to whether these companies will revise and restate their balance sheets for the period from 1st April 2017 onwards to reflect the transfer of assets and liabilities of the Transferor Companies into the Transferee Company under the provisions of section 131 of the Act in accordance with carrying amount of a liability or an asset or the life of the assets to be transferred. h) Refer to Balance Sheet as at 31.03.2020 of Transferee Company, the company had acquired and merged with 15 other company in the year ended on March 2019 with one of the conditions of merger order approved by Hon'ble NCLT was, the company will be formed under the status of Non- Banking Financial Company and will do its business according to the Guidelines and provision issued under various act in this regard. Hence, the company should be classified as "Non-Systemically, Non-Deposit, Non-Banking Financial Company". Further, The Company has received No Objection Certificate for Name approval from Reserve Bank of India for registration under Non-Banking Financial Company and same has	*that too without applying the minds thus we find no grounds to interfere in the order passed by the NCLT. The appeal is dismissed. No order as to cost."* 6. That as per clause 6 of the scheme "*all legal proceedings of whatsoever nature by or against the Transferor Companies pending and/or arising on or after the Appointed Date and relating to the Transferor Companies shall not abate or be discontinued or be in any way prejudicially affected by reason of the Scheme or by anything contained in the scheme but shall be continued and enforced by or against the Transferee Company in the manner and to the same extent as would or might have continued and enforced by or against the Transferor Companies ".* Accordingly, the sanction of scheme by the Hon'ble Tribunal would not have an impact on the ongoing proceedings. 7. That, the Transferor Companies and Transferee Company have filed their balance sheets regularly till 2021 and conducted the AGM as on the due date of AGM. The merger

been approved by Ministry of Corporate Affairs but the company has not received its registration certificate as NBFC from RBI up to 31st March 2020.

i) These companies have diverse business activities, yet interchangeable transactions of investments in unquoted shares with large premium. As per the proposed Scheme of the Amalgamation cross shareholding stand cancelled/extinguished. It has been observed from e-records maintained in MCA21 Registry that the following companies have issued shares at premium from time to time. The relevant details about certain allotment of shares by the respective companies are as under:

Name of company	Date of allotment	No. of shares issued	Premium collected per share (Rs.)
Mogra Buildcon Private Limited (Transferor Company No.4)	30.03.2012	38,70,000	@ Rs. 40/- per share= 15,48,00,000
Mogra Estates Private Limited (Transferor Company No.5)	30.03.2012	30,90,000	@ Rs. 40/- per share= 12,36,00,000
Boom Developers Private Limited (Transferor Company No.6)	30.03.2012	16,40,000	8,20,00,000
Ad-fin Capital Services India Private Limited (Transferor Company No.15)	31.03.2008	94,23,000	84,80,70,000
Sunny Cast And Forge Private Limited (Transferor Company No.16)	31.03.2006	9,48,140	8,53,32,600
Karishma Industries Private Limited (Transferor Company No.17)	31.03.2009	77,63,000	1,16,44,50,000
Euro Asia Mercantile Private Limited (Transferor Company No.18)	31.03.2007	48,10,000	43,29,00,000
Experience Investment & Finance Private Limited (Transferee Company)	18.10.2019	2,43,58,181	1,42,45,24,905

Since as per the SFIO Report as stated aforesaid, certain Transferor Companies were found to be involved in money laundering will be given effect on the effective date as per clause 1.3 of the scheme and post that the transferee company shall file the balance sheet to reflect the asset and liability of Transferor Companies. The Provision of Section 131 of the Companies Act 2013 ("The Act") is not applicable as Section 131 is only applicable when company does not comply with the provisions of Section 129 and 134 and under Section 131 of the Act, the financial statement or a revised report can be revised only for three preceding financials year after obtaining approval of the Tribunal on an application made by the company in such form and manner as may be prescribed and a copy of the order passed by the Tribunal shall be filed with the Registrar.

It is to mention here that there is no non compliance of the provisions of Section 129 or 134 by any of the Petitioner companies. Hence 131 is not applicable in the instant case.

Section 131 is reproduced below:

activities and as directed by the Ministry, this office has filed winding-up petitions in respect of aforesaid Transferor Company No.15, Transferor Company No.16, Transferor Company No.17 and Transferor Company No.18, therefore, the proposed amalgamation may not be allowed. 2. Observations of the Deponent are as under: i. On perusal of the financial statements of all the Transferor Companies (i.e. Transferor Company- 1 to 18) it is found that the Balance Sheets of the Petitioner Transferor Companies indicates that more than 50% of their total assets are the Financial Assets and more than 50% of their Total Revenue are generated from the Financial Activities. Therefore, the said Transferor Companies-1 to 18 as stated above, fall under the ambit of NBFC Companies, thereby these requires registration under Section 45- I of the Reserve Bank of India Act, 1934 which have not complied by them. In view of the above, it is prayed before the Hon'ble Tribunal to obtain the comments of the Reserve Bank of India in this matter. ii. The Deponent concurs with the submissions of ROC as stated in para-12 supra. It is also to submit that the Enforcement action as initiated against the Transferor Company No. 15, 16, 17 & 18 above will be effected if the scheme is	131. Voluntary revision of financial statements or Board's report :- *"(1) If it appears to the directors of a company that—* *(a) the financial statement of the company; or* *(b) the report of the Board,* *do not comply with the provisions of section 129 or section 134 they may prepare revised financial statement or a revised report in respect of any of the three preceding financial years after obtaining approval of the Tribunal on an application made by the company in such form and manner as may be prescribed and a copy of the order passed by the Tribunal shall be filed with the Registrar:* *Provided that the Tribunal shall give notice to the Central Government and the Income-tax authorities and shall take into consideration the representations, if any, made by that Government or the authorities before passing any order under this section:* *Provided further that such revised financial statement or report shall not be prepared or filed more than once in a financial year:*

sanctioned by the Hon'ble Tribunal. In view of the above, it is prayed that the Hon'ble Tribunal may not consider to sanction of the scheme of merger of the Companies, against whom the winding-up proceedings are pending before the Hon'ble NCLT and NCLAT.	*Provided also that the detailed reasons for revision of such financial statement or report shall also be disclosed in the Board's report in the relevant financial year in which such revision is being made.* *(2) Where copies of the previous financial statement or report have been sent out to members or delivered to the Registrar or laid before the company in general meeting, the revisions must be confined to—* *(a) the correction in respect of which the previous financial statement or report do not comply with the provisions of section 129 or section 134; and* *(b) the making of any necessary consequential alternation.* *(3) The Central Government may make rules as to the application of the provisions of this Act in relation to revised financial statement or a revised director's report and such rules may, in particular-* *a) make different provisions according to which the previous financial statement or report are replaced or are*

	supplemented by a document indicating the corrections to be made; *(b) make provisions with respect to the functions of the company's auditor in relation to the revised financial statement or report;* *(c) require the directors to take such steps as may be prescribed".* 8. That it is pertinent to note here that reply to this observation has already been filed by the Petitioner Companies in Point 37 of Page 31 of the reply dated 18 October, 2021 submitted with the Hon'ble Regional Director, which is annexed and marked as Annexure A to the report of the Ld. Regional Director (Northern Region) and has not been repeated for the sake of brevity. The company is still in the process of obtaining certificate of registration under Section 45-IA of the RBI Act, 1934 in terms of RBI press release dated 17 June, 2016. The acknowledgement of the application made to RBI has been attached as Annexure 1 to this reply. 9. That the winding up petitions filed by the ROC have already been

	dismissed against Transferor Company No. 15, Transferor Company No. 16 and Transferor Company No. 18 vide order dated 18.12.2019 of Hon'ble NCLT New Delhi Bench-II, 18.12.2019 of Hon'ble NCLT New Delhi Bench-II and 27.02.2020 of Hon'ble New Delhi Bench-III respectively. However, the proceedings against the Transferor Company No. 17 are still pending before NCLT. 10. The ROC has now preferred an appeal in the Hon'ble National Company Law Appellate Tribunal ("NCLAT"), New Delhi in respect of Transferor Company No. 15 bearing Company Appeal (AT) No. 105 of 2020 and Transferor Company No. 18 bearing Company Appeal (AT) No. 116 of 2020 and the matter is fixed for final date of hearing on 23rd September 2022. The ROC has also preferred an appeal in the Hon'ble National Company Law Appellate Tribunal, New Delhi in respect of Transferor Company NO. 16 bearing Company Appeal (AT) No. 203 of 2020. 11. That it is pertinent to note here that the reply to this observation has

	already been filed by the Petitioner Companies in Point 37of Pg 31 of the Reply dated 18 October, 2021 submitted with the Hon'ble Regional Director, which is annexed and marked as Annexure A to the report of the Ld. Regional Director (Northern Region) and has not been repeated for the sake of brevity. The transferee company is still in the process of obtaining certificate of registration under Section 45 –IA of the RBI Act, 934 in terms of RBI press release dated 17 June, 2016. It is reiterated that none of the Transferor Companies are NBFC. That I state that Hon'ble National Company Law Appellate Tribunal, New Delhi Bench dismissed the Appeals against AD Fin Capital Services India Private Limited (Transferor Company No. 15), Sunny Cast and Forge Private Limited (Transferor Company No. 16) and Euro Asia Mercantile Private Limited (Transferor Company No. 18) vide order dated 25.02.2023 against the order dated 18.12.2019 and 27.02.2020 of this Hon'ble Adjudicating Authority.

	That the winding up petition filed by Registrar of Companies against Karishma Industries Private Limited (Transferor Company No. 17) before this Hon'ble Adjudicating Authority has been dismissed vide order dated 02.02.2023

13. The Income Tax Department had submitted its report in respect of the Petitioner Companies i.e Petitioner Company No. 1, Petitioner Company 4, Petitioner Company 5, Petitioner Company 7, Petitioner Company 8, Petitioner Company 9, Petitioner Company 11, Petitioner Company 12, Petitioner Company 13, and Petitioner Company 14 dated 10.10.2022, 24.12.2021, 10.01.2022, 09.02.2022, 24.12.2021, 28.12.2021 wherein it was submitted that certain demands against the petitioner companies were pending. Further, it was submitted that the income tax department has no objection to the proposed scheme of amalgamation being approved by this Tribunal, subject to the undertaking filed by the Transferee Company /Petitioner Company 19 in respect of the demand. The Transferee Company/Petitioner Company 19 had filed an undertaking dated 02.02.2023 that in case of any taxes of any nature, duties and cess or any other like payment or deductions of the Transferor

Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 Transferor Company 6, Transferor Company 7, Transferor Company 8, Transferor Company 9, Transferor Company 10, Transferor Company 11, Transferor Company 12 Transferor Company 13, Transferor Company 14, Transferor Company 15, Transferor Company 16, Transferor Company 17, Transferor Company 18 arises , it shall be paid off by the Transferee Company. Further, it is also undertaken that any income tax arising out of pending income Tax Appeals, if any, in case of Transferor Companies shall be borne by the Transferee Company.

14. The Petitioner Companies filed an affidavit dated 11.02.2023 to place on record the winding up dismissal order dated 02.02.2023 passed by National Company Law Tribunal, New Delhi pending against M/s Karishma Industries Private Limited (Transferor Company No. 17).

15. The Petitioner Companies filed an affidavit dated 11.02.2023 to place on record the winding up dismissal order passed by the Hon'ble National Company Law Appellate Tribunal, New Delhi to enunciate that all the winding Up proceedings pending against AD Fin Capital Services India Private Limited (Transferor Company No. 15), Sunny Cast and Forge Private Limited (Transferor Company No. 16 and Euro Asia Mercantile Private Limited (Transferor Company No. 18) have now been dismissed.

16. In view of the foregoing facts and discussion and upon considering the approval accorded by the Members and Creditors of the Petitioner

Companies to the proposed Scheme and also in view that of the fact that no sustainable objections have been received by the Office of Regional Director, Northern Region, Official Liquidator, Delhi and Income Tax Department or any other interested party, there does not appear to be any impediment in granting sanction to the proposed scheme of Amalgamation.

17. Accordingly, in sequel to the above facts and circumstances, sanction is hereby granted to the Scheme of Amalgamation proposed by the Petitioner Companies under Section 230 to 232 of the Companies Act, 2013.

18. The sanctioned scheme of Amalgamation shall be binding on the Transferor Company No.1 to Transferor Company No. 18 and Transferee Company and their Shareholders and Creditors. The Petitioner Companies shall remain bound to comply with the statutory requirements in accordance with law.

19. Notwithstanding the above, if at any stage deficiency is found or violation committed qua any enactments, statutory rule or regulation is found to be committed, the sanctioned granted by this Tribunal to the Scheme will not come in the way of action to be taken, albeit, in accordance with the law, against the concerned persons, Directors and Officials of the Petitioner Companies.

20. While approving the Scheme as above, it is clarified that this Order should not be construed as an order in any way granting exemptions from payment of Stamp Duty, Taxes or other statutory dues, if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement, which may be specifically required under any law will be made. Further, the approval of the Scheme would be in no manner affect the tax treatment of the transactions under the Income Tax Act, 1961 or serve as any exemption or defense for the Petitioner Companies against tax treatment in accordance with the provisions of Income Tax Act, 1961.

21. This tribunal further directs with respect to Transferor Companies (Petitioner Company No. 1-18) and Transferee Company, that:

    i. The proposed Appointed Date is 01.04.2017. However, considering the fact that accounts have been closed and audited for Financial Year 2017-18, 2018-19, 2019-20, 2020-21, and 2021-22, already. We prescribe 01.04.2022 as the Appointed Date. Upon the sanction becoming effective from the appointed date of amalgamation as prescribed by this tribunal is 01.04.2022, the transferor companies (Transferor Companies 1-18) shall stand dissolved without undergoing the process of winding up.

    ii. It is also pertinent to mention that all the Applicant Companies in light of Section 239 and Section 240 of the Companies Act, 2013, will comply with the provisions of Section 239, in respect of

preservation of books and papers of the amalgamated companies. Further, as stipulated in Section 240 of the Companies Act, 2013 that notwithstanding anything in any other law for the time being in force, the liability is respect of offences committed under this Act by the officers in default, of the transferor company prior to its merger, amalgamation or acquisition shall continue after such merger, amalgamation or acquisition.

iii. All benefits, entitlements, incentives and concession under incentive schemes and policies that the Transferor Company is entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry tax and Income tax laws, subsidy receivables from government, grant from any governmental authorities, direct tax benefit/exemption/deductions, shall, to the extent statutorily available and along with associated obligations, stands transferred to and be available to the Transferee Company, as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions;

iv. All contracts of the Transferor Companies, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obliged thereto;

v. All the employees of the Transferor Company shall be deemed to have become the employees and the staff of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favourable than those on which they are engaged by the Transferor Company, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

vi. All liabilities of the Transferor Companies shall, pursuant to the provision of section 232(4) and other applicable provisions of the Companies Act, 2013, to the extent they are outstanding as on the Effective Date, without any further act, instruments or deed stand transferred to and be deemed to the debts, liabilities, contingents, liabilities, duties, and obligation etc. as the case may be, of the Transferee Company and shall be exercised by or against the Transferee Company, as if it had incurred such liabilities.

vii. All proceedings now pending by or against the Transferor Companies shall be continued by or against the Transferee Company.

viii. Any person interested or effected shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary.

22. Further, the Petitioner Companies shall within thirty days of the receipt of this Order, caused a Certified Copy of this Order to be delivered to the Registrar of Companies for registration and on such Certified Copy being so delivered, the Transferor Companies shall be dissolved and the Registrar of Companies shall place all documents relating to the Transferor Companies on the file kept by him in relation to the Transferee Company and the files relating to all the Petitioner Companies shall be consolidate accordingly.

23. In compliance with the requirement of Section 232 (7) of the Act, the transferee company shall until the full implementation of the scheme of Amalgamation shall file a statement every year in the Form CAA 8 along with the required fees with the Registrar of Companies as prescribed in Companies (Registration offices and fees) Rules, 2014 within 210 days from the end of each financial year.

24. The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

Sd/-
(P.S.N. PRASAD)
MEMBER(JUDICIAL)